Fort Bend County District Court

Cause No. 2025-CV-0039

Katherine Russo, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 9, 2025
Plaintiff's counsel:	Stacy Johnson, Sullivan & Palmer LLP

Parties

Plaintiff Katherine Russo is an individual residing in Texas who was injured in the collision described below. Defendant is the automobile liability insurer that issued the poilcy under which the at-fault driver was insured. Defendant may be served through its registered agent for service of process in the State of Texas.

Facts

On July 18, 2024, Plaintiff was lawfully operating a passenger vehicle on a roadway in Sugar Land, Texas, traveling at a lawful and reasonable speed. The at-fault driver crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The collision was low-speed, but the force of the impact threw Plaintiff's hands against the steering wheel and dashboard. Plaintiff was transported for emergency evaluation and later diagnosed with a fracutre of the wrist. Plaintiff has since undergone medical treatment, including immobilization, follow-up imaging, and physical therapy. Plaintiff timely submtited a claim to Defendant under the at-fault driver's liability coverage, and Defendant has not offered a fair settlement.

Negligence

The at-fault driver owed a duty to operate the vehicle with reasonable care, keep a proper lookout, and remain within his or her own lane of travel. The at-fault driver breached that duty by failing to maintain control of the vehicle and crossing the centerline. Defendant, as liability insurer, is obligated under the policy and Texas law to indemnify its insured for damages caused by covered negligence and to handle claims in good faith. Defendant's failure to fairly evaluate and promptly resolve Plaintiff's claim, despite clear liability, constitutes a breach of its contractual obligations and of the duties imposed by the Texas Insurance Code.

Damages

As a direct result of the collision, Plaintiff has suffered a wrist fracture, medical expenses past and future, lost wages and reduced earning capacity, physical pain, mental anguish, and physical impairment. Plaintiff seeks recovery of all damages allowed by law, and demands payment in the amount of $238,000.00, together with prejudgment and postjudgment interest, costs of court, and such other relief to which Plaintiff may be entitled.